

18STCV06655 18STCV06655

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-11

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Case Number: 18STCV06655 Hearing Date: August 11, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

AEG PResents Productions,
LLC

;

Plaintiff,

vs.

Danny Wimmer Presents, LLC

;

Defendant.

Case No.:

18STCV06655

Hearing Date:

August 11, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Defendant's

Motion to Compel Compliance With Statement of Production

MOVING PARTY: Defendant Danny Wimmer Presents, LLC

RESPONDING PARTY: Plaintiff AEG Presents Productions, LLC

Motion to Compel

Compliance With Statement of Production

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

The court did not consider defendant
Danny Wimmer Presents, LLC's ("Defendant") supplemental memorandum of points
and authorities in support of motion to compel compliance as agreed with
requests for production of documents and other supplemental papers filed July
20, 2026 because (1) Defendant filed its notice of motion on March 20, 2026, and
Code of Civil Procedure section 1010 requires that notice of a motion must
state the papers upon which it is to be based and a copy of such papers must accompany
the notice, and (2) the proof of service for Defendant's supplemental papers shows
that those papers were served by electronic service, and those papers were not
served at least 16 court days plus 2 court days for electronic service before
the hearing as required by Code of Civil Procedure sections 1005, subdivision
(b) and 1010.6, subdivision (a)(3)(B).

EVIDENTIARY

OBJECTIONS

The court declines to rule on the
evidentiary objections asserted in connection with the reply papers because the

items to which the objections are raised are not material to the court's ruling.

DISCUSSION

Defendant Danny

Wimmer Presents, LLC moves the court for an order compelling Plaintiff AEG Presents Productions, LLC ("Plaintiff") to produce documents in accordance with a statement of compliance with Defendant's Request for Production of Documents, Set One, and for sanctions.

The court denies

the motion as moot because Defendant implicitly concedes that Plaintiff has produced documents in response to Defendant's requests for production of documents. (Reply p.2:15-25.) Defendant's contention that Plaintiff's production is inadequate or that documents have been improperly withheld under a claim of attorney-client privilege is not the proper subject of a motion to compel compliance under Code of Civil Procedure section 2031.320, subdivision (a).

The court also denies

Defendant's request for sanctions because the court finds that the circumstances presented would make the imposition of sanctions unjust. (Code Civ. Proc., § 2031.320, subd. (b).)

ORDER

The

court DENIES defendant Danny Wimmer Presents, LLC's motion to compel compliance.

The court orders plaintiff

AEG Presents Productions, LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 11, 2026

Robert B. Broadbelt III

Judge of the Superior Court